

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Lai	Team: Team # 1	CCRB Case #: 201203655	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/21/2012 1:00 PM	Location of Incident: § 87(2)(b) between § 87(2)(b) and § 87(2)(b)	Precinct: 83	18 Mo. SOL 9/21/2013	EO SOL 9/21/2013	
Date/Time CV Reported Wed, 03/21/2012 2:22 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/21/2012 2:22 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Nicholas Vandyke	02363	927819	083 PCT
2. POM Daniel Castronova	27956	929856	083 PCT
3. POM Derek Almeida	25236	946426	083 PCT
4. An officer			083 PCT
5. POM Randolph Burgher	01120	939952	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dilson Abreu	23409	933590	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Nicholas Vandyke	Abuse: Sgt. Nicholas Van Dyke stopped § 87(2)(b)	§ 87(2)(b)
B.POM Derek Almeida	Abuse: PO Derek Almeida stopped § 87(2)(b)	§ 87(2)(b)
C.POM Daniel Castronova	Abuse: PO Daniel Castronova stopped § 87(2)(b)	§ 87(2)(b)
D.POM Derek Almeida	Abuse: PO Derek Almeida searched § 87(2)(b)	§ 87(2)(b)
E.POM Daniel Castronova	Abuse: PO Daniel Castronova searched § 87(2)(b)	§ 87(2)(b)
F. An officer	Abuse: An officer threatened to arrest an individual.	§ 87(2)(b)
G.POM Derek Almeida	Discourtesy: PO Derek Almeida spoke discourteously to § 87(2)(b)	§ 87(2)(b)
H.SGT Nicholas Vandyke	Discourtesy: Sgt. Nicholas Van Dyke acted rudely toward § 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

§ 87(2)(b) filed this complaint over the telephone with the CCRB on March 21, 2012 (encl. E1-3). On the same day, at approximately 1:00 p.m., § 87(2)(b) was approached by Sgt. Nicholas Van Dyke, PO Daniel Castronova, and PO Derek Almeida of the 83rd Precinct on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. Their subsequent interactions resulted in the following allegations:

- **Allegation A – Abuse of Authority: Sgt. Nicholas Van Dyke stopped** § 87(2)(b)

- **Allegation B – Abuse of Authority: PO Derek Almeida stopped** § 87(2)(b)

- **Allegation C – Abuse of Authority: PO Daniel Castronova stopped** § 87(2)(b)

- **Allegation D – Abuse of Authority: PO Derek Almeida searched** § 87(2)(b)

- **Allegation E – Abuse of Authority: PO Daniel Castronova searched** § 87(2)(b)

§ 87(2)(g)

- **Allegation F – Abuse of Authority: An officer threatened to arrest** § 87(2)(b)

§ 87(2)(g)

- **Allegation G – Discourtesy: PO Derek Almeida spoke discourteously to** § 87(2)(b)

- **Allegation H – Discourtesy: Sgt. Nicholas Van Dyke acted rudely toward** § 87(2)(b)

§ 87(2)(g)

- § 87(2)(g), § 87(4-b)

This case was unsuitable for mediation as § 87(2)(b) expressed an intent to file a lawsuit.

Results of Investigation

Civilian Statements

Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, stands 5'11", weighs 238 pounds, and has salt and pepper hair, a goatee, and brown eyes.

- § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on April 3, 2012 (encl. F1-3), and he provided additional information during a follow up call on June 6, 2013 (encl. R6). § 87(2)(g) On March 21, 2012, at approximately 12:45 p.m., § 87(2)(b) went to his aunt's house at § 87(2)(b) in Brooklyn. He wore a navy-blue New York Yankees baseball cap, sunglasses, a black shirt, a black jacket with a NYCT 9/11 First Responders logo on the back, blue jeans, and grey sneakers; he wore the same outfit during his interview (encl. F4). He had a pack of cigarettes, a lighter, and a 1" x .75" black oval rock in his front right jean pocket, a wallet in his rear right jean pocket, two paper towels in his rear left jean pocket, a Chase Bank envelope with over \$1000 cash (to pay his landlord) in his front left jean pocket, and a silver-colored, metal, 5" x 1.25" box cutter in his outside left jacket pocket (which was not exposed). The rock was a family heirloom, which he held every day for good luck and he carried the box cutter for personal protection.

After speaking with his aunt inside her home for approximately fifteen minutes, he left and walked to the B60 bus stop without stopping, speaking, or interacting with anyone. The B60 bus stop was on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) and across the street from the stop, there was a school playground, and numerous children and school staff workers were outside.

Before he got to the bus stop, a bus had left, and § 87(2)(b) followed it on the sidewalk for several steps in an unsuccessful attempt to flag the bus driver to stop. § 87(2)(b) walked back to the bus stop and began dialing on his cell phone with his left hand to call his wife. Before he spoke to his wife on the phone, an unmarked gold or grey-colored Chevrolet Impala with plate number § 87(2)(e), § 87(2)(b) (when he filed his original complaint, he provided the possible plate number as § 87(2)(e), § 87(2)(b)) occupied by three uniformed officers identified via investigation as Sgt. Nicholas Van Dyke, PO Daniel Castronova, and PO Derek Almeida of the 83rd Precinct, stopped alongside of him. Sgt. Van Dyke, the driver, was described as an olive-complexioned Hispanic male, 5'10", 26 to 27 years old, and 180-200 pounds. PO Castronova, seated in the front passenger seat, was described as a white male, 6'0" to 6'1", 25 to 26 years old, and 200-220 pounds. PO Almeida was described as an olive-complexioned Hispanic male, 5'8", and had an average build and a silver shield.

Without any officer saying anything, PO Almeida grabbed § 87(2)(b) cell phone from his hand and placed it on top of their vehicle while PO Castronova grabbed § 87(2)(b) right arm with both hands. § 87(2)(b) immediately raised his right arm above his shoulders. Sgt. Van Dyke stood approximately ten to twelve feet away on the sidewalk, near a house's garage, and used a cell phone throughout this incident; he did not physically or verbally interact with § 87(2)(b).

§ 87(2)(b) § 87(2)(b) asked, “What is this about?” and PO Almeida replied, “We don’t have to tell you anything.” § 87(2)(b) then said that they had to tell him something since they had their hands on him, and PO Almeida said, “I do not have to tell you nothing.” § 87(2)(b) responded, “Then get your hands off me. If you don’t have to tell me nothing, [then] get your hands off me.” With § 87(2)(b) right arm held above his shoulder, PO Castronova attempted to twist his wrist downwards, palm facing back. § 87(2)(b) did not allow him to do so by maintaining his arm in the same position because he believed that he “didn’t do anything.” He asked PO Castronova why he was twisting his arm, but he did not answer.

PO Almeida placed his hand into § 87(2)(b) outside left pocket, removed the box cutter, and placed it on top of the patrol car while telling § 87(2)(b) that he was not supposed to have that. He then placed his hands into § 87(2)(b) front and rear left jean pockets, removing paper towels and the envelope, which were placed on top of the vehicle. Thereafter, he ran his hand along the inside seam of § 87(2)(b) waistband, and ran his finger along the inside of his sneakers. Simultaneously, PO Castronova released his grasp of § 87(2)(b) right arm and placed his hands into § 87(2)(b) outside right jacket pocket, front and rear right jean pockets, and removed § 87(2)(b) cigarettes, lighter, rock, and wallet, which were placed on top of the patrol car. In his initial complaint narrative, § 87(2)(b) said that PO Almeida inspected his hat. During this time, § 87(2)(b) said to the officers, “Don’t go through my pockets.”

While PO Castronova and PO Almeida placed their hands into § 87(2)(b) pockets, § 87(2)(b) observed an unidentified female, accompanied by a young child, exit from a bus and observing them. § 87(2)(b) described this woman as black, 24 to 25 years old, and shorter than § 87(2)(b) he did not recall the child’s appearance or gender. The female said, “Why are you picking on this old man?” PO Castronova and PO Almeida told her to mind her business and she replied, “I’m not an old man. Don’t tell me to mind my own business.” PO Castronova or PO Almeida § 87(2)(b) was unsure which of the two) told her, “Move along before I lock you up.” She did not leave and remained standing there.

PO Castronova asked § 87(2)(b) if he had ever been arrested before, but § 87(2)(b) did not answer him. § 87(2)(b) initially stated in his interview that after PO Castronova repeated the question and having it unanswered, PO Castronova asked, “Do you understand English?” § 87(2)(b) replied, “Evidently you don’t understand English,” adding that he had asked the officers why they searched him and none of them answered. PO Castronova said, “I told you, it’s none of your business,” and § 87(2)(b) asked him why his hands were in his pockets and went around his waist. Later in the interview, § 87(2)(b) stated that PO Castronova asked § 87(2)(b) if he was “having a hard time hearing,” and when § 87(2)(b) denied it, he asked why he did not answer him. § 87(2)(b) responded, “When you answer me why you went through my pockets, I’ll tell you whether I have ever been arrested.” Ultimately, § 87(2)(b) said that he was arrested thirty years ago, but that was irrelevant to this incident.

§ 87(2)(b) said, “All I want from all of this [are] all your badge numbers.” PO Almeida, grabbing the left chest area of his uniform and shaking his silver-colored shield, said, “You want my badge number? Look. Take my badge number. Go ahead, take it. You see it? Take it.” § 87(2)(b) who did not recall this officer’s name or shield number, asked for a pen and PO Almeida denied having one. After examining § 87(2)(b) wallet that had his § 87(2)(b) identification, which was also used to take public transportation, PO Almeida asked him if he worked for § 87(2)(b), and he affirmed so. The officer then said, “Excuse me, it’s a mistake.” While the three officers entered their vehicle, PO Almeida said, “Get your shit off our car. C’mon, you gotta go.” Numerous children from the schoolyard were observing from the fence, and school staff instructed the children to move away from the fence. § 87(2)(b) § 87(2)(b) said to the children, “Stay in school, otherwise these guys (the officers) will be doing

this to you.” As § 87(2)(b) removed his belongings from the top of their vehicle, the officers drove off, causing some of his things to fall on the ground. He was unable to find his family heirloom rock; he did not believe that the officers took it.

The unidentified female wrote down one of the officer’s shield numbers and her telephone number on the top of a matchbox and gave it to § 87(2)(b) telling him that he could contact her as a witness if necessary. Additionally, § 87(2)(b) wrote down the officers’ vehicle plate number. As of the date of this report, § 87(2)(b) who moved to Florida, has been unable to find the female’s information.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Hispanic female § 87(2)(b).
- She was identified by the investigation as a witness after contacting § 87(2)(b) for possible witnesses to this incident.

CCRB Testimony

§ 87(2)(b) provided a phone statement on April 23, 2012, and an in-person statement at § 87(2)(b) on April 26, 2012 (encl. G1-4). § 87(2)(g)

On the date of the incident, at some time after 11:00 a.m., § 87(2)(b) was outside § 87(2)(b) watching students in the schoolyard; she stood in the raised section of the yard (encl. D5). Fellow coworker § 87(2)(b) stood by the stairs separating the raised section of the yard (encl. D5), while another coworker, § 87(2)(b) stood by the flag post (encl. D4). § 87(2)(b) observed § 87(2)(b) looking across the street, towards § 87(2)(b). She asked him what was wrong, and he said, “Look [at] what’s going on.” § 87(2)(b) looked towards a garage across the street on § 87(2)(b) and saw two uniformed police officers, identified via investigation as PO Castronova and PO Almeida, standing behind an “elderly” black male with grey hair, identified via investigation as § 87(2)(b). A third uniformed officer, identified via investigation as Sgt. Van Dyke, stood by the rear of the officers’ marked police car using a cell phone.

PO Castronova was described as a white male in his 30s who was taller than § 87(2)(b) and had an average build and dark-colored hair. PO Almeida was described as a white male in his 30s who stood shorter than PO Castronova and § 87(2)(b) and had an average build and dark-colored hair. Sgt. Van Dyke was described as a white male.

§ 87(2)(b) appeared “cooperative” by removing his belongings from his pockets and placing them on top of the police car’s trunk. § 87(2)(b) was unable to hear if § 87(2)(b) or the officers were engaged in any conversation. Later in the interview, § 87(2)(b) said that she was unsure whether § 87(2)(b) or one of the officers removed the belongings. She did not see any type of violent exchange between § 87(2)(b) and the officers at any point. An unidentified female walked from the corner of § 87(2)(b) and began yelling, “Police harassment” towards the officers. She was described as a black female in her 30s with a long weave. The officers did not respond to her comments, and she continued walking away.

PO Castronova then held onto one of § 87(2)(b) shoulders and guided him a few steps towards the side of the vehicle. It was at that point § 87(2)(b) stopped watching the incident and continued watching the schoolchildren. At some point, she looked back towards the incident location and saw that the officers and the marked police vehicle were no longer present. She had not seen the officers enter or actually leave the location. Meanwhile, § 87(2)(b) was still at the same spot, adjusting and putting back his belongings into his pockets. He never attempted to

speak to § 87(2)(b) her coworkers, or the students. In § 87(2)(b)'s phone statement, she stated that the unidentified female returned to § 87(2)(b).

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male § 87(2)(b)
- He was identified by the investigation as a witness after contacting § 87(2)(b) for possible witnesses to this incident.

CCRB Testimony

§ 87(2)(b) provided a phone statement on April 23, 2012, and an in-person statement at § 87(2)(b) on April 26, 2012 (encl. H1-4). § 87(2)(g)

On the date of the incident, § 87(2)(b) was outside of § 87(2)(b) in the playground watching students during their lunch break. Other school aides, § 87(2)(b), and § 87(2)(b) were also present. § 87(2)(b) speculated that § 87(2)(b) and § 87(2)(b) did not witness this incident as they were standing further back in the raised section of the yard (encl. D5) and because neither mentioned having observed this incident to § 87(2)(b) as of the date of § 87(2)(b)'s interview.

As § 87(2)(b) stood inside the playground on § 87(2)(b) he saw § 87(2)(b) identified via investigation as § 87(2)(b) across the street walking east. Other than walking, § 87(2)(b) did not do anything, and § 87(2)(b) was unable to see where § 87(2)(b) hands were. § 87(2)(b) was only able to describe PO Castronova, PO Almeida, and Sgt. Van Dyke as white males who stood 5'8" to 5'11". Sgt. Van Dyke exited the police vehicle from the front passenger seat, stood approximately 3-4 feet away from § 87(2)(b) and used a cell phone. PO Castronova and PO Almeida grabbed § 87(2)(b) jacket by the sleeves and collar, and both alternated patting the exterior of § 87(2)(b) torso and legs, and placed their hands into his jacket and pants pockets, removing pieces of paper and dropping them on the ground. § 87(2)(b) appeared calm and did not appear to resist. PO Castronova and PO Almeida spoke with § 87(2)(b) but § 87(2)(b) was unable to hear their conversation. Sgt. Van Dyke, who was using a cell phone "most of the time," was observing this interaction but he did not directly interact with § 87(2)(b). § 87(2)(b) did not see the entire interaction as he glanced between observing the students and the incident. He stood in the playground area directly across the street from this incident – approximately six car lengths away. Five to seven minutes later, the officers left. It was at that point § 87(2)(b) saw a 24-to-30-year-old black female with long hair approach and speak to § 87(2)(b). § 87(2)(b) did not hear their conversation, and escorted the children back into the school.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black female who has black hair and brown eyes § 87(2)(b)
- She was identified by the investigation as a witness after contacting § 87(2)(b) for possible witnesses to this incident.

CCRB Testimony

§ 87(2)(b) provided a phone statement on April 23, 2012, and an in-person statement at § 87(2)(b) on April 26, 2012 (encl. I1-4). § 87(2)(g)

On the date of the incident, sometime before 12:00 p.m., § 87(2)(b) exited the school with students at the school yard. Fellow school aides § 87(2)(b) and § 87(2)(b) were also outside. Upon exiting and standing by the entranceway on § 87(2)(b) closest to § 87(2)(b) she saw three light-complexioned white or Hispanic male officers in uniform, and § 87(2)(b) identified via investigation as § 87(2)(b) across the street. § 87(2)(b) did not recall further physical descriptions of these officers, who were identified via investigation as Sgt. Van Dyke, PO Castronova, and PO Almeida. § 87(2)(b) stood with PO Castronova and PO Almeida towards the rear of a black or blue sedan, while Sgt. Van Dyke stood outside the rear passenger doors using a cell phone. As § 87(2)(b) was focused on observing the students in the yard, she did not see how § 87(2)(b) physically or verbally interacted with the officers. She did not see if the officers physically touched § 87(2)(b). In § 87(2)(b)'s phone statement, she stated that PO Castronova and/or PO Almeida removed items from § 87(2)(b) pockets. After 15 to 20 minutes, § 87(2)(b) went back inside the school with the students. § 87(2)(b) and the officers were still across the street, but § 87(2)(b) was unaware of what occurred thereafter.

Attempts to Contact Civilians

The investigation was unable to identify the female victim who was threatened with arrest during this incident. § 87(2)(b) did not know her name and he lost the matchbox that had her telephone number written on it.

The undersigned investigator conducted fieldwork in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn on April 26, 2012 (encl. J1), at which time § 87(2)(b) and § 87(2)(b) were interviewed at § 87(2)(b) at § 87(2)(b). § 87(2)(b) who was working as a school aide during the time of the incident, did not witness § 87(2)(b) interaction with police officers. § 87(2)(b) and § 87(2)(b) affirmed that the incident occurred in front of an automobile repair shop at § 87(2)(b) which was closed at the time of the canvass.

That same day, the undersigned spoke with § 87(2)(b), who is the owner and the only person working at § 87(2)(b) at § 87(2)(b). § 87(2)(b) did not witness, nor was he aware of this incident, and stated that he had installed video cameras outside of his shop ten days after the incident date. The undersigned also spoke with employee "§ 87(2)(b) of § 87(2)(b) at § 87(2)(b). He did not witness nor was he aware of this incident, and stated that the restaurant did not have any cameras.

NYPD Statements:

Subject Officer: SGT NICHOLAS VAN DYKE

- Sgt. Van Dyke is a § 87(2)(b)-old white male who stands 5'8", weighs 180 pounds, and has brown hair and hazel eyes.
- On March 21, 2012, he was on-duty from 6:55 a.m. to 3:52 p.m., assigned as the SNEU supervisor, in uniform, in unmarked light-colored Chevrolet Impala, § 87(2)(b) with PO Castronova and PO Almeida.

Memo Book

Sgt. Van Dyke had no memo book entries regarding this incident. At 12:15 p.m., he noted two persons under arrest at Weirfield Street and Evergreen Avenue. At 1:40 p.m., he noted

another arrest at Kossuth Place and Broadway. PO Perez and PO Ludemann made those arrests, while Sgt. Van Dyke's vehicle served as the prisoner transport (encl. K1-3).

CCRB Testimony

Sgt. Van Dyke provided an in-person statement at the CCRB on August 14, 2012 (encl. K4-5). He had no recollection of this incident. He did not recall being in the vicinity of the incident location, which he was familiar as having "sporadic" narcotics-related activity. He did not recall stopping, frisking, searching, or interacting with any individuals who were not arrested on this day, nor did he recall PO Castronova or PO Almeida doing so. He did not recall using any profanity, including the word "shit", towards any individual during this incident. He did not recognize a photograph of § 87(2)(b) during his interview.

Subject Officer: PO DEREK ALMEIDA

- PO Almeida is a § 87(2)(b)-old Hispanic male who stands 5'9", weighs 180 pounds, and has brown hair and brown eyes.
- On March 21, 2012, he was on-duty from 7:00 a.m. to 3:35 p.m., assigned to SNEU, in uniform and in unmarked Chevrolet Impala § 87(2)(b) with officers that he did not recall.

Memo Book

PO Almeida had no memo book entries regarding this incident. Other than his reporting for duty at 7:00 a.m., Sgt. Van Dyke inspecting his memo book at 9:25 a.m., his vehicle assignment, and his and his end of tour, he had no other entries (encl. L1-3).

CCRB Testimony

PO Almeida provided an in-person statement at the CCRB on August 3, 2012 (encl. L4-5). He had no recollection of this incident. When shown the incident date's roll call, he did not specifically recall working with PO Castronova or Sgt. Van Dyke that day. He did not recall being in the vicinity of the incident location. He did not recall stopping, frisking, searching, or interacting with any individuals on this day, nor did he recall his partners doing so. He did not recall using any profanity, including the word "shit", towards any individual during this incident. He did not recognize a photograph of § 87(2)(b) during his interview.

Subject Officer: PO DANIEL CASTRONOVA

- PO Castronova is a § 87(2)(b)-old white male who stands 6'4", weighs 220 pounds, and has brown hair and blue eyes.
- On March 21, 2012, he was on-duty from 7:00 a.m. to 3:35 p.m., assigned to SNEU, in uniform, in unmarked tan-colored sedan number § 87(2)(b) with Sgt. Van Dyke and PO Almeida.

Memo Book

PO Castronova did not have any memo book entries regarding this incident. At 9:25 a.m., Sgt. Van Dyke scratched his memo book, and his next entry was made at 2:35 p.m., which noted his leaving duty one hour early (encl. M1-2).

CCRB Testimony

PO Castronova provided an in-person interview at the CCRB on August 21, 2012 (encl. M3-4). He had no recollection of this incident. He did not recall being in the vicinity of the incident location. He did not recall stopping, frisking, searching, or interacting with any individuals on this day, nor did not recall his partners doing so. He did not recall using any

profanity, including the word “shit”, towards any individual during this incident. He did not recognize a photograph of § 87(2)(b) during his interview. At some point during this day that he did not recall, PO Castronova and his team had to return to the stationhouse once or twice in regards to arrests made. He was not involved in those arrests, and he did not recall if PO Almeida was involved.

Subject Officer: PO RANDOLPH BURGHER

- *PO Burgher is a § 87(2)(b)-old Hispanic male who stands 5’10”, weighs 230 pounds, and has short black hair and brown eyes.*
- *He was on-duty from 8:00 a.m. to 3:35 pm. on March 21, 2012, assigned to the SNEU observation post in plainclothes and in an unmarked sedan with PO Abreu.*

Memo Book

PO Burgher had no memo book entries regarding this incident. His only entries reflected the start and end of his tour (O1-2).

CCRB Testimony

PO Burgher provided a statement at the CCRB on June 11, 2013 (encl. O3-4). He had no recollection of this incident. He did not recall his whereabouts or if he was near the incident location during the proximate time of this incident. He did not recall observing a black male individual and/or communicate to Sgt. Van Dyke, PO Almeida, or PO Castronova to stop a black male. He did not recall observing those officers stop, frisk, search, or interact with a civilian during the proximate time and in the vicinity of this incident. He did not recall stopping, frisking, or searching a civilian himself. PO Burgher did not recall being at the incident location but he was familiar with it, as the area has a high incidence of drug-related crimes. He asserted that it is the discretion of the SNEU team to determine where to conduct their operations. Normally, his team would communicate via radio, but he did not specifically recall how he communicated with his teammates on the incident date. If an observation post officer observed actions by civilians that warranted police action (including a stop or arrest), a description of the civilian would be dispatched to other team members out of sight of the observing officer. During the interview, PO Burgher did not recognize a photograph of § 87(2)(b)

Witness Officer: PO DILSON ABREU

- *PO Abreu is a § 87(2)(b)-old Hispanic male who stands 5’9”, weighs 200 pounds, and has short black hair and brown eyes.*
- *He was on-duty from 8:00 a.m. on March 21, 2012, until 12:40 a.m. the following day, assigned to the SNEU observation post in plainclothes and in an unmarked car with PO Burgher.*

Memo Book

PO Abreu had no memo book entries regarding this incident. At 10:40 a.m., he made an arrest at 302 Jefferson Street and he had no entries until 1:40 p.m., at which time another arrest was made on Kossuth Place and Broadway. He had no further entries until the end of his tour at 12:40 a.m. (encl. N1-3).

CCRB Testimony

PO Abreu provided a statement at the CCRB on June 11, 2013 (encl. N4-5). He had no recollection of this incident. He did not recall observing a black male individual and/or

contacting Sgt. Van Dyke, PO Almeida, or PO Castronova to stop a black male. He did not recall if he was contacted by Sgt. Van Dyke, PO Almeida, or PO Castronova about a stopped individual. He did not recall observing those officers interact with, stop, frisk, or search § 87(2)(b) at the proximate time and in the vicinity of this incident. PO Abreu noted that the SNEU team typically communicates with each other via radio or cell phones, but he did not recall what method of communication was used on this incident date. He did not recall what he was doing in between the time of the arrests at 10:40 a.m. and 1:40 p.m. He stated that the arrest location noted in his memo book at 1:40 p.m., at Kossuth Place and Broadway, was a 15-20 minute drive from § 87(2)(b) between § 87(2)(b) and § 87(2)(b). PO Abreu noted that Sgt. Van Dyke would have been present to verify each of those arrests. PO Abreu did not recall being in the vicinity of the incident location, but he was familiar with the area as having a high incidence of narcotics and gang-related crimes. During the interview, PO Abreu did not recognize a photograph of § 87(2)(b).

NYPD Documents

SPRINT

A SPRINT index was obtained and found no relevant SPRINTs in regards to this incident (encl. P1-2).

Stop, Question, and Frisk (UF-250) Report

A UF-250 report was not completed in regard to this incident. Copies of the computerized and handwritten UF-250 log were obtained, which confirmed that a report was not completed in regards to this incident. Additionally, the log shows that neither Sgt. Van Dyke, PO Almeida, nor PO Castronova completed a UF-250 report on the incident date (encl. P3-4).

Fleet Services

Fleet Services confirmed that license plate number § 87(2)(e), § 87(2)(f) is vehicle § 87(2)(e), § 87(2)(f), which is a 2009 gold Chevrolet Impala registered to the 83rd Precinct (encl. T5).

MISD

There were no warrant checks conducted for § 87(2)(b) on the incident date (encl. P8-10).

Roll Call

The 83rd Precinct roll call confirmed that Sgt. Van Dyke, PO Almeida, and PO Castronova were working SNEU and assigned to vehicle 260 (encl. P5-7).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of February 15, 2013, with regard to the incident (encl. S5).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. C1).

Subject Officers' CCRB History

- Sgt. Van Dyke has been a member of the service for 11 years and there are three substantiated CCRB allegations against him. On March 13, 2013, the CCRB substantiated and recommended charges for Sgt. Van Dyke's searching a civilian and a vehicle in CCRB case 201115628. On June 5, 2013, the CCRB substantiated and recommended charges for his stopping a civilian in CCRB case 201201695. As of the date of this report, all three recommendations are pending an NYPD disposition (encl. B1).
- PO Almeida has been a member of the service for 5 years and there are three substantiated CCRB allegations against him. On March 13, 2013, the CCRB substantiated and recommended charges for PO Almeida's searching a civilian and a vehicle in CCRB case 201115628. On June 5, 2013, the CCRB substantiated and recommended charges for his stopping a civilian in CCRB case 201201695. As of the date of this report, all three recommendations are pending an NYPD disposition (encl. B2-3).
- PO Castronova has been a member of the service for 10 years and there are no substantiated CCRB allegations against him (encl. B4-5).
- PO Burgher has been a member of the service for 7 years and there are no substantiated CCRB allegations against him (encl. B6).

Conclusion

Identification of Subject Officers

§ 87(2)(b) provided the last four digits of the license plate number belonging to the officers' vehicle, which was confirmed by Fleet Services as vehicle number § 87(2)(b) assigned to the 83rd Precinct. Sgt. Van Dyke, PO Almeida, and PO Castronova affirmed that they were assigned to vehicle number § 87(2)(b) on the incident date. § 87(2)(b) and witness' testimonies of the subject officers' physical appearances were also similar to Sgt. Van Dyke, PO Almeida, and PO Castronova's physical attributes. Most distinctively, PO Castronova was described by § 87(2)(b) as the tallest officer, and PO Almeida was identified as the officer who grabbed the left chest area of his uniform and shook his shield, which was silver-colored.

Investigative Findings and Recommendations

- **Allegation A – Abuse of Authority: Sgt. Nicholas Van Dyke stopped** § 87(2)(b)

- **Allegation B – Abuse of Authority: PO Derek Almeida stopped** § 87(2)(b)

- **Allegation C – Abuse of Authority: PO Daniel Castronova stopped** § 87(2)(b)

- **Allegation D – Abuse of Authority: PO Derek Almeida searched** § 87(2)(b)

- **Allegation E – Abuse of Authority: PO Daniel Castronova searched** § 87(2)(b)

§ 87(2)(b) alleged that he was stopped and searched by officers in a vehicle that the investigation determined to be assigned to Sgt. Van Dyke, PO Almeida, and PO Castronova. § 87(2)(g)

§ 87(2)(b) observed § 87(2)(b) removing his belongings from his pockets and placing them on top of the police car's trunk, but she later said that she was not sure if § 87(2)(b) or the officers removed them. § 87(2)(b) saw PO Castronova and PO Almeida grab § 87(2)(b) jacket by the sleeves and collar, pat the exterior of § 87(2)(b) torso and legs, and place their hands into his jacket and pants pockets, removing pieces of paper and dropping them on the ground. Although § 87(2)(b) said during her interview that she did not see if an officer touched § 87(2)(b) she said in her phone statement that at least one officer

removed items from § 87(2)(b) pockets. Neither Sgt. Van Dyke, PO Almeida, PO Castronova, PO Abreu, nor PO Burgher remembered this incident. § 87(2)(g)

According to N.Y.S. Criminal Procedure Law §140.50(1), a police officer may stop a person when he reasonably suspects that such person is committing, has committed or is about to commit a crime (encl. A1). To justify a stop, an officer must have reasonable suspicion that a crime is at hand. People v. De Bour, 40 N.Y.2d 210, 215 (1976). (encl. A2-18). An officer may frisk § 87(2)(b) when he reasonably suspects he is in danger of physical injury. C.P.L. §140.50(3). (encl. A1). In instances where a frisk reveals a bulge, that bulge must look and feel like a weapon before the officer can conduct a further and more intrusive search. People v. Robinson, 125 A.D.2d 256, 261 (1st Dep't 1986). (encl. A19-23).

§ 87(2)(g)

- **Allegation F – Abuse of Authority: An officer threatened to arrest** § 87(2)(b)

§ 87(2)(b) stated after a female who exited a bus and observed the incident, PO Castronova or PO Almeida told her, “Move along before I lock you up.” § 87(2)(b) who was uncertain which officer made that remark, did not know the female’s name or contact information, and there is no police documentation that could identify her. § 87(2)(g)

- **Allegation G – Discourtesy: PO Derek Almeida spoke discourteously to** § 87(2)(b)

§ 87(2)(b)

- **Allegation H – Discourtesy: Sgt. Nicholas Van Dyke acted rudely toward** § 87(2)(b)

§ 87(2)(b) testified that PO Almeida told him, “Get your shit off our car.” While he collected his belongings from the top of the officers’ vehicle, the officers drove off, causing § 87(2)(b) belongings to fall to the ground. However, PO Almeida, Sgt. Van Dyke, PO Castronova did not recall this incident, and none of the witnesses heard any verbal exchanges or saw the officers drove away with § 87(2)(b) belongings on top of the vehicle. § 87(2)(g)

- § 87(2)(g), § 87(4-b)

§ 87(2)
(a) 6
§ 87(4-b)

§ 87(4-b) § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____

Title/Signature	Print	Date
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